

ADDENDUM NO. 1

DEMOLITION OF EXISTING HILTON ELEMENTARY SCHOOL FOR THE BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOLS

July 15th, 2024

ADDENDUM TO STANDARD FORM OF AGREEMENT BETWEEN OWNER & ARCHITECT DOCUMENT B104-2017

This addendum to the Agreement for Professional Design Services dated as of March 8th, 2024 between the Board of Education for the Brecksville-Broadview Heights City School District (the District) and Architectural Vision Group, Ltd. (the Architect) is entered into as of July 15th, 2024.

WHEREAS, the District and the Architect have entered into an Agreement for Professional Design Services in connection with the Brecksville-Broadview Heights Campus Master Planning Services (see attached AIA B104-2017 Agreement and Exhibit "B").

WHEREAS, the District has requested and the Architect has agreed to provide additional design services for the following project:

1. Demolition of Existing Hilton Elementary (AVG Project 2401-2)

Scope of Services: Detailed civil engineering design, plan, and specification preparation necessary to properly abate and demolish the existing Elementary School located at 6812 Mill Road. We will prepare dimensionally correct AutoCAD Civil 3D 2025 site plan drawings including site grading, drainage, removal and abandonment of site utility and pavement. The plans prepared will include: demolition plans, site grading, drainage, storm sewers & site restoration of the area outlined in green on the attached map. The stormwater pollution prevention plan is anticipated to require a sediment settling basin and is included as well as preparation of the Ohio EPA Notice of Intent.

We will prepare dimensionally correct AutoCAD Civil 3D 2024 site plan drawings for all. Plans will be completed to meet the approval of the City Engineer and Cuyahoga County Soil & Water Conservation District. It is anticipated that the total land disturbance will be greater than 1 acre; therefore, an Ohio EPA Notice-of-Intent (NOI) and a storm water pollution prevention plan will be required. Erosion control inspection is not the responsibility of Lewis Land Professionals, Inc.

AVG and our Civil Engineer (LLP) will provide construction administration services including responding to contractor questions through RFIs, reviewing shop drawings and submittals and site visits during construction as needed. Construction inspection and/or testing will be provided by independent third party.

WHEREAS, the District and Architect have agreed to amend the AIA Document B104-2017 Owner and Architect Agreement to reflect additional design work as described in the above paragraph.

NOW, THEREFORE, in consideration of the mutual promises herein contained, the District and the Architect agree to amend the Standard Form of Agreement.

A) Article 11.1 Basic Compensation – 11.1.2: The Architect’s compensation for the design documents & construction administration of the Hilton Elementary Demolition project is hereby amended for a lump sum. Progress payment for basic services in each phase shall be as per Article 11.5 of the Standard Agreement (see attached AIA Document B104-2017 dated March 8th, 2024).

1) Total Project cost		\$743,742.00
Construction cost is	(89% of project cost)	\$661,930.00
Soft cost	(11%)	\$ 81,812.00

2) Total compensation for the Project on a Lump Sum Base.

AVG Fee = Lump Sum	\$ 30,000.00
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B) Reimbursables:

For reimbursable expenses, the compensation shall be the expenses incurred by the Architect (and the Consultant) at the direct cost incurred. The reimbursable expenses are an estimate at this time. The reimbursable amount can go up or down based on the actual work.

1. Printing, Reproduction, Plots, Scanning documents	\$ 3,000.00
2. Permitting and Other Fees Required by Authority having Jurisdiction on the project	\$ 7,500.00
3. Hazardous Material Consultant Assessment, Report, Cost Estimate, and Specification for Demolition	\$ 10,000.00
4. Construction Testing and Existing Utility Location Testing	<u>\$ 16,000.00</u>
Total:	<u>\$ 36,500.00 (Estimate)</u>

C) Billing:

AVG will bill the Brecksville-Broadview Heights City Schools on a monthly basis.

IN WITNESS WHEREOF, the parties hereto have executed this first Amendment as of the day and year first herein above written. ALL OTHER ARTICLES OF THE ORIGINAL AIA Document B104-2017 dated March 8th, 2024 Standard Form of Agreement between Owner and Architect remains unchanged.

**BRECKSVILLE-BROADVIEW
HEIGHTS CITY SCHOOL DISTRICT**

By: _____

Mr. Craig Yaniglos

Title: Treasurer

Attached:

Exhibit (A)

Exhibit (B)

ARCHITECTURAL VISION GROUP LTD.B

By:  _____

Syed S. Abbas

Title: President